

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JUNE 5, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JUSTIN J. PUTNEY vs. SONIA, INC.; ET AL.
Case No. CU24-00694**

Motion for Preliminary Approval of PAGA and Class Action Settlement

TENTATIVE RULING

The Parties and any interested persons are to appear.

The Parties should be prepared to discuss paragraph 45 of the settlement agreement, “escalator provision.”

**ISABEL ROBLES; ET AL. vs. FORD MOTOR COMPANY; ET AL.
Case No. CU24-06043**

Motion by Defendant FORD MOTOR COMPANY for Summary Adjudication (of 6th Cause of Action for Fraudulent Inducement- Concealment)

TENTATIVE RULING

A defendant moving for summary judgment or summary adjudication of a cause of action has the burden of negating a necessary element of a cause of action, or establishing the evidence required for an affirmative defense. C.C.P. §437c(p)(2).

The elements of a fraudulent inducement-concealment cause of action include the concealing of a material fact by the defendant (known at the relevant time by the

defendant but not known by the plaintiff). Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 775; Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.

This element can be met in a lemon law case by evidence available only to the manufacturer defendant, such as early consumer complaints, testing data, and repair information about a claimed defect. Mui Ho v. Toyota Motor Corp. (N.D.Cal. 2013) 931 F.Supp.2d 987, 998 [allegations in the complaint that the manufacturer defendant had “non-public, internal data about . . . headlamp problems, including pre-release testing data, early consumer complaints about the defect to the defendant’s dealerships, dealership repair orders, and conducted testing was sufficient to overcome a pleading challenge].

Still, the defendant need not have sole knowledge of the material fact being concealed. It is enough if the defendant has superior knowledge to that of the plaintiff of that material fact. Edwards v. FCA US LLC (N.D.Cal. 2022) 2022 U.S.Dist.LEXIS 98891, *9. Plaintiffs alleged in the complaint that FORD knew of problems with the 10-speed transmission system installed in Plaintiff’s 2019 F150 truck at time of Plaintiffs’ purchase (and that Plaintiffs did not). But pleading is one thing; proof with actual admissible evidence is another.

A defendant moving for summary judgment or adjudication can negate a necessary element of a cause of action by providing factually devoid discovery responses made by the plaintiff as to that element.

A moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision (o)(2) [now subdivision (p)(2)]. Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact. Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590.

As another court explained, to find otherwise would improperly encourage parties to avoid providing substantive responses to discovery:

Parties have a duty to respond to discovery requests “as completely and straightforwardly as possible given the information available to them.” (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 580, fn. 3 [37 Cal. Rptr. 2d 653].) When defendants conduct comprehensive discovery, plaintiffs cannot play “hide the ball.” Moreover, it is not reasonable for courts to infer pursuant to Code of Civil Procedure section 437c, subdivision (c), that defendants can discover further material facts from plaintiffs’ lists of people and documents if the plaintiffs do not disclose any facts known by such persons or contained in such documents when asked to do so. In moving for summary judgment, “[t]he defendant may . . . present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered

nothing.” (Aguilar, supra, 25 Cal.4th at p. 855.) If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs’ factually devoid discovery responses . . . To find otherwise . . . would also encourage wild-goose chases that undermine the purpose of our modern discovery rules. Andrews v. Foster Wheeler LLC (2026) 138 Cal.App.4th 96, 106-107 and 107 n. 3.

See also Leslie G. v. Perry & Associates (1996) 43 Cal.App.4th 472, 482, which stated:

Under the current version of the summary judgment statute, a moving defendant need not support his motion with affirmative evidence negating an essential element of the responding party’s case. Instead, the moving defendant may (through factually vague discovery responses or otherwise) point to the absence of evidence to support the plaintiff’s case. When that is done, the burden shifts to the plaintiff to present evidence showing there is a triable issue of material fact. If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial. (Code Civ. Proc., § 437c, subd. (o)(2); Union Bank v. Superior Court (1995) 31 Cal. App. 4th 573, 590 [37 Cal. Rptr. 2d 653]; Villa v. McFerren (1995) 35 Cal. App. 4th 733, 748-749 [41 Cal. Rptr. 2d 719]; Hunter v. Pacific Mechanical Corp. (1995) 37 Cal. App. 4th 1282, 1286-1288 [44 Cal. Rptr. 2d 335].)

FORD presented evidence that it propounded special interrogatories and requests for production, asking Plaintiffs to identify all evidence supporting the fraudulent inducement-concealment cause of action, and that the responses by Plaintiffs were factually devoid.

The burden therefore shifted to Plaintiffs, to present evidence sufficient to create a triable issue of material fact as to FORD’s knowledge prior to Plaintiff’s purchase of (unfixable) defects in the 10-speed transmissions used in Plaintiffs’ F150.

Plaintiffs cannot use the allegations raised in their complaint to meet that shifted burden on them to produce evidence sufficient to support the existence of a triable issue of material fact. Romak Iron Works v. Prudential Ins. Co. (1980) 104 Cal.App.3d 767, 775 [“a party may not rely on his own pleading as a factual source on a motion for summary judgment”].

The declaration of Plaintiffs’ counsel discussed discovery issues, but provided no evidence, admissible or otherwise, to show that at time of Plaintiffs’ purchase, FORD knew of non-remediable defects with the design or manufacture of the 10-speed transmission system installed in 2019 F150 trucks.

To the extent Plaintiffs' opposition asked the court to take judicial notice of the existence on a website for the National Highway Traffic Safety Administration (NHTSA) of three technical service bulletins (TSBs) allegedly issued by FORD to vehicle service providers, the court finds this insufficient to establish FORD's knowledge of non-remediable defects.

Preliminarily, the court notes that one of the three TSBs is dated a year after Plaintiffs' purchase of the 2019 F150 truck.

As to the other two TSBs:

The court can only take judicial notice of the existence of the documents on the website, not the truth of the matters asserted.

While we may take judicial notice of the existence of the audit report, Web sites, and blogs, we may not accept their contents as true. (Unruh-Haxton v. Regents of University of California (2008) 162 Cal.App.4th 343, 364 [76 Cal. Rptr. 3d 146].) "When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable. [Citation.]" (StorMedia Inc. v. Superior Court (1999) 20 Cal.4th 449, 457, fn. 9 [84 Cal. Rptr. 2d 843, 976 P.2d 214].) Ragland v. U.S. Bank National Assn. (2012) 209 Cal.App.4th 182, 193.

Furthermore, even if the contents of those two TSBs could be considered, they do not confirm FORD's knowledge of any non-remediable defects, nor that there were no material changes made to the design or manufacture of the 10-speed transmission for the vehicles addressed by those TSBs for the 10-speed transmission system installed in 2019 F150s.

The court has some concern about FORD's initial objections to the notice of PMK deposition inclusive of requests for production of documents Plaintiffs served back in October 2024, and disagrees with FORD's position that any discovery about vehicles manufactured in different years or in different models with a 10-speed transmission system was precluded as not reasonably calculated to lead to the discovery of admissible evidence. But Plaintiffs failed to pursue a motion to compel, even after FORD filed this motion in November 2025, and despite the court's continuance of this hearing for four months to allow Plaintiffs more time. Under these circumstances, it is Plaintiffs who are primarily to blame for their failure to present in opposition to this motion any foundational evidence necessary to create a triable issue of material fact on this cause of action.

The court therefore grants FORD's motion for summary adjudication of the fraudulent inducement-concealment cause of action.
